

Part 5: Drugs and Cosmetics Rules , 1945

Rule 160G

Title: Procedure of Approving Authority

Jurisdiction: India

Category: Standards

Source Citation: Drugs and Cosmetics Rules, 1945, Rule 160G

Plain English Summary:

Rule 160G explains how the approving authority decides an application for laboratory approval. If the laboratory satisfies the required conditions, approval is granted in Form 48. If the conditions are not satisfied, the application is rejected and the applicant is informed about the reasons.

The Exact Legal Text:

160G. Procedure of approving authority.—(1) If the approving authority after such further enquiry, if any, as it may consider necessary, is satisfied that the requirements of the rules made under the Act have been complied with and that the conditions of the approval and the rules made under the Act have been observed, it shall grant approval in Form 48.

(2) If the approving authority is not so satisfied, it shall reject the application and shall inform the applicant of the reasons for such rejection and of the conditions which shall be satisfied before approval could be granted.

Keywords/Triggers:

Rule 160G, Form 48 approval, approval rejection, approving authority, laboratory requirements, testing institution approval

Rule 160H

Title: Application After Rejection

Jurisdiction: India

Category: Standards

Source Citation: Drugs and Cosmetics Rules, 1945, Rule 160H

Plain English Summary:

Rule 160H allows an applicant to apply again after rejection of a laboratory approval application. The applicant must inform the approving authority that the required conditions have been fulfilled and must pay the prescribed inspection fee. A further inspection may be conducted before approval is granted.

The Exact Legal Text:

160H. Application after rejection.—If within a period of six months from the rejection of an application for approval, the applicant informs the approving authority that the conditions laid down have been satisfied and deposits inspection fee of two thousand rupees, the approving authority may, if, after causing a further inspection to be made and after being satisfied that the conditions for grant of approval have been complied with, grant the approval in Form 48.

Keywords/Triggers:

Rule 160H, rejected approval application, reapplication, further inspection, Form 48, testing laboratory approval, inspection fee

Rule 160 I

Title: Renewal of Approval

Jurisdiction: India

Category: Standards

Source Citation: Drugs and Cosmetics Rules, 1945, Rule 160-I

Plain English Summary:

Rule 160-I explains the renewal process for an approved testing laboratory. The approving authority conducts an inspection and issues a renewal certificate if the laboratory continues to comply with the approval conditions and the applicable rules.

The Exact Legal Text:

160-I. Renewal.—On an application being made for renewal, the approving authority shall, after causing an inspection to be made and if satisfied that the conditions of the approval and the rules made under the Act have been complied with, shall issue a certificate of renewal in Form 49.

Keywords/Triggers:

Rule 160-I, laboratory approval renewal, Form 49, renewal certificate, testing laboratory inspection, Ayurvedic drug testing

Rule 160J

Title: Withdrawal and Suspension of Approvals

Jurisdiction: India

Category: Standards

Source Citation: Drugs and Cosmetics Rules, 1945, Rule 160J

Plain English Summary:

Rule 160J allows the approving authority to suspend or withdraw a laboratory's approval if the laboratory fails to follow the approval conditions or the Act and Rules. The laboratory must be given an opportunity to explain its position. It may appeal against the suspension or withdrawal to the State Government within three months.

The Exact Legal Text:

160J. Withdrawal and suspension of approvals.—(1) The approving authority may, after giving the approved laboratory an opportunity to show cause why such an order should not be passed, by an order in writing stating the reasons therefor, withdraw an approval granted under this Part or suspend it for such period as it thinks fit either wholly or in respect of testing of some of the categories of Ayurvedic, Siddha and Unani drugs to which it relates, if in his opinion the approved laboratory had failed to comply with any of the conditions of the approval or with any provision of the Act or the rules made thereunder.

(2) Any approved laboratory, whose approval has been suspended or withdrawn, may, within three months of the date of the order of suspension or withdrawal, appeal to the State Government which shall dispose of the appeal in consultation with a panel of competent persons appointed by the Department of Indian Systems of Medicine and Homoeopathy, Government of India in this behalf and notified in the Official Gazette.

Keywords/Triggers:

Rule 160J, suspension of laboratory approval, withdrawal of approval, show cause notice, appeal to State Government, testing laboratory compliance

